

Court No. - 39

Case :- WRIT - C No. - 26811 of 2025

Petitioner :- M/S Ishita Cold Storage And Ice P Ltd

Respondent :- State Of Uttar Pradesh And 3 Others

Counsel for Petitioner :- Awadhesh Kumar Malviya

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Arindam Sinha, J.

Hon'ble Prashant Kumar, J.

1. Mr. Awadhesh Kumar Malviya, learned advocate appears on behalf of petitioner and submits, prayer of his client is for the supply company to reconsider case of his client, of excess payment made on account of arrears from October, 2016 upto February, 2025 at Rs. 53,37,420.50/-, to be adjusted against future bills.

2. Mr. Raj Mohan Upadhyay, learned advocate, Additional Chief Standing Counsel appears on behalf of State, Mr Nitesh Patel, learned advocate appears on behalf of respondent nos. 3 and 4 (the supply company). He submits, dispute on bills are to be referred under clause 6.5 of U.P. Electricity Supply Code, 2005. In reply, Mr. Malviya draws attention to order dated 2nd January, 2023 of coordinate Bench disposing of his client's earlier writ petition.

3. By aforesaid order dated 2nd January, 2023, the supply company conceded to considering petitioner's representation regarding the amount. Petitioner says, the consideration was not duly made and hence the prayer.

4. We, direct adjournment in expectation of the writ petition being disposed of, without adjudication, on adjourned date.

5. List on 20th August, 2025, as fresh.

Order Date :- 11.8.2025

Bhanu

(Arindam Sinha, J.)

(Prashant Kumar, J.)



2025:AHC:227761-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 26811 of 2025

M/S Ishita Cold Storage And Ice P Ltd

.....Petitioner(s)

Versus

State Of Uttar Pradesh And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Awadhesh Kumar Malviya
Counsel for Respondent(s)	:	C.S.C., Udit Chandra

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.

1. Heard learned counsel for the petitioner and learned Standing Counsel for the respondents.
2. The petitioner by means of the present writ petition has prayed for the following relief:
3. Learned counsel for the petitioner states that after filing of the present petition, respondent authority has withdrawn the order dated 06.02.2023 and has issued notice to the petitioner on 14.08.2025 to submit reply . He further submits that pursuant to the notice dated 14.08.2025, proceeding against the petitioner may be concluded within a time bound period by the Executive Officer.
4. Considering the aforesaid facts, the writ petition is **disposed off** directing the respondent no.4-Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Electricity Distribution Division-I, Ghazipur to conclude the proceeding against the petitioner pursuant to the show cause notice dated 14.08.2025 expeditiously preferably within a period of two months from the date of production of a certified copy of this order.

December 17, 2025
NS

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)